COVID-19 VIRUS DISCLOSURE AND WARNING FOR REOPENING APARTMENT COMMUNITY AND USE OF FACILITIES ADDENDUM

A. PARTIES AND PREMISES

Addendum Date: [“Management”] ☐ as Owner ☐ As Agent for the Owner of [Community Name] enters into this Covid-19 Virus Disclosure and Warning for Reopening Apartment Community and Use of Facilities Addendum with Resident pertaining to Apt. No. located at [Address] with

[“Resident”]. This Addendum is part of the Apartment Rental Contract dated [Date of Lease].

B. DISCLOSURE AND WARNING PROVISIONS

1. Important:

Please read **this addendum before signing. This addendum pertains to the potential for exposure and infection from the Covid-19 virus that may be present in or around the apartment community and personal injuries or property loss sustained by the Resident as the result of using the facilities and amenities provided in the Apartment Community. This addendum requires the Resident to take reasonable steps for protecting his or her safety and security, and it *limits the liability* of the apartment Owner and managing agent or company *under certain circumstances* for injuries, property loss, and damages. Your signature below means that you read and understand this addendum. Although all parts of this addendum are important, please see Paragraphs 7 and 9 regarding your waiver and release of the Owner and Management of the apartment community related to certain claims.**

2. Definitions.

The term “Resident” includes all Residents who have signed this addendum and any child, minor, person, or occupant of which the Resident is the parent or legal guardian. The term “Owner” refers to the apartment ownership entity. If this addendum is signed by the Owner, then the Owner is also referred to as “Management.” If this addendum is signed by the company or persons managing the apartment community on behalf of and as the agent for the Owner, then “Management” refers to the managing agent of the owner. The terms “Owner” and “Management” include their respective general and limited partners, officers, directors, agents, employees, and shareholders or members.

The term “Covid-19 virus” refers to the widespread virus that resulted in a global pandemic and many federal, state, and local orders that declared a state of emergency and closed many businesses and facilities, directed sheltering in place.

As State and local health guidelines (“Guidelines”) are issued which permit non-critical businesses to reopen to perform basic operations under certain specified conditions, Resident, Occupants, and Guests (if applicable) understand and agree to follow such guidelines when accessing, entering, or using common areas, facilities, amenities, and all places within the apartment community outside the Resident’s apartment.

“Facilities and Amenities” includes, but is not limited to, all parts of the apartment community that may be used by the Resident, Occupants, Social Guests, Visitors, and Invitees and includes, but is not limited to, the business office, clubhouse, business center, fitness center, tennis courts, pool, spa, sauna, steam room, bathrooms, walking trails, grilling and picnic areas, play and recreation areas, dog park, car wash stations, tv and media rooms, entertainment areas. The term also includes any equipment for use in the area, including but not limited to, exercise and fitness equipment, and tv remote controls.

3. Owner and Management Make No Representations, Guaranties, Covenants, or Warranties About the Safety of the Apartment Community from Possible Exposure to Covid-19 Virus.

Resident acknowledges and agrees that neither the Owner nor Management have made any verbal or written representations, guaranties, covenants, or warranties, either express or implied, that:

The apartment community or its entrances, exits, common areas, apartments, or any portion are safe or free from the Covid-19 Virus;

The neighboring community or neighborhood outside of or around the apartment community are safe or free from the Covid-19 Virus; or

Measures adopted or followed to meet governing health Guidelines when performing basic operations is, has been, or will be provided to or for Resident that will protect Resident or his property from crimes or will prevent the Covid-19 Virus from occurring in or around the apartment community.

Neither the Owner nor Management market, advertise, or make representations that the Resident or Resident’s occupants, social guests, visitors, or invitees will be safe or free from the Covid-19 Virus while they are using, in, near, at, leaving, or entering any portion of the apartment community.

Although the Owner and Management will follow the state and local Guidelines to reduce exposure to the Covid-19 Virus, Resident agrees and understands such steps will not prevent exposure to the Covid-19 Virus. Exposure can occur from association to other Residents, Occupants, and Guests regardless of steps taken to comply with Guidelines issued by the federal, state or local government.

4. Following Reopening Protocols Does Not Create an Assurance of Safety from Contracting Covid-19 Virus.

Resident acknowledges and agrees that the existence, presence, use, and adherence to the Governor’s Order for minimum basic operation requirements does not constitute an implied warranty or representation from the Owner or Management that the Resident will be safe or protected from the Covid-19 Virus or that following such procedures will prevent the Resident, Occupants, and Guests from contracting Covid-19 virus in the apartment or around or near the apartment community.

Copyright © 5/2020 by Atlanta Apartment Association, Inc. - Form #2005
All Rights Reserved

Resident agrees that there is no contractual agreement of any kind that requires the Owner or Management to use or provide specific kinds of procedures in the common areas of the apartment community or inside of the leased premises of the apartment itself. Resident agrees that Owner and Management are not contractually obligated to protect or keep the Resident safe from contracting the Covid-19 virus under the wording of the lease or this addendum.

Resident agrees that the only requirements or protocols providing guidance for reopening the facilities and amenities of the apartment community are contained in the Guidelines. The Governor's Order is not a statutory enactment of the Georgia Legislature and not a common law interpretation by the Courts of Georgia.

It is Resident's responsibility to exercise due care and caution for his or her own safety at all times when using the facilities and amenities of the apartment community. Nothing contained in this addendum is intended to waive or change the Owner's duty or liability under the law with regards to keeping the premises safe. Resident acknowledges and agrees that the Owner and Management have no statutory or contractual duty to keep the common areas of the apartment community safe or free from Covid-19 virus.

Resident agrees that he or she is assuming the risk when using the facilities and amenities of the apartment community. Resident has equal or superior knowledge of the presence of the COVID-19 virus when using the facilities and amenities of the apartment community.

Resident agrees that any testimony or evidence by any person, medical expert, industrial hygienist, or other consultant that the proper operational procedures following state and local health guidelines could or would have prevented the Resident, Occupant, Social Guest, Visitor, or Invitee from contracting Covid-19 virus would be speculative in nature and cannot be used to establish liability of the Owner or Management in any premises liability claim or case pertaining contraction of Covid-19 virus on or around the apartment community.

Resident agrees that he or she shall not form an assumption at any time that he or she is safe from the Covid-19 virus at the apartment community. Resident must exercise reasonable care for his or her safety at all times to avoid contracting the Covid-19 virus by following proper protocols established by the Governor's Order, the US Center for Communicable Diseases, and other accepted medical safety standards.

5. Limitations in the Effectiveness of Following Requirements for Minimum Basic Operational Requirements.

Resident acknowledges and agrees that the effectiveness of requirements to perform minimum basic operations and reopen the facilities and amenities around or in portions of the apartment community is limited in its effectiveness to preventing contracting the Covid-19 virus. Resident understands and acknowledges that other Residents could or may fail to follow basic acceptable standards of safety and medical hygiene that could spread the Covid-19 virus. Basic screening performed by the Owner and Management does not insure or guarantee that another Resident, Occupant, or Guest is non-contagious. Many individuals may be asymptomatic and still have the virus.

6. Resident Has a Duty to Exercise Due Care at All Times for His or Her Safety.

Resident acknowledges and agrees that he or she has a duty at all times to exercise due care to protect and provide for his or her own safety and property from the existence of Covid-19 Virus and acts of others who may be contagious with Covid-19 Virus. Resident understands and agrees that the Owner or Management cannot and do not know who has and does not have the Covid-19 Virus. Antibody testing is not in widespread use to determine who has or has not had the virus. Testing for whether someone currently has the virus will only determine who should not be using the facilities and amenities.

Resident acknowledges and agrees that in the event Resident's family, occupants, guest, or invitees have the Covid-19 Virus, exhibit Covid-19 symptoms, a fever, or have influenza like symptoms they will refrain from using any facilities and amenities in the apartment community, quarantine, and seek appropriate medical care to prevent spread of the virus.

7. Limitation of Owner's and Management's Liability: Neither Owner Nor Management Shall Have Liability to Resident for Damage or Injury Sustained Due to the Improper Acts of Others Who Fail to Follow local, state and federal Guidelines or Use the Facilities and Amenities While Contagious with the Virus.

Resident expressly waives and releases Owner or Management from any liability or any negligence claim based on alleged acts of other Residents, Occupants, Social Guests, Visitors, or Invitees pertaining to any condition, defect, action, or failure to act in the common areas of the apartment community to the fullest extent allowed by law, including, but not limited to, claims pertaining to alleged negligence in preventing or failing to prevent Covid-19 virus from being in the apartment or in the common areas of the apartment community.

This Addendum and this contractual provision limit the ability of Resident to sue for or to recover civil damages from the Owner or Management for contraction of Covid-19 virus by the Resident under certain conditions.

Resident agrees that the Owner and Management are not guarantor's of Resident's safety and agrees to waive, release, and forego any premises liability claim for personal injuries or property loss due to the negligence or intentional acts of others (meaning someone other than management employees), including, but not limited to, those any claim based on the Owner's duty to keep the common areas safe from the presence of Covid-19 virus. Resident knowingly waives and releases the Owner and Management from any claim for alleged negligence for failure to prevent the Resident from contracting the Covid-19 virus from others.

Resident agrees that he or she did not lease any portion of the common areas of the apartment community; accepted the common areas as-is; and, only leased the apartment itself. Resident's use of the common areas of the apartment community is a permissive license incidental to leasing the apartment to use the common areas as provided in the lease and community rules and other addenda. The waiver and release of liability in this paragraph does not apply to the owner or occupier of land's duties and liability under Georgia landlord and tenant law that apply in the apartment, as opposed to the common areas.

8. Owner and Management Have No Liability for Contraction of the Covid-19 Virus from Another Source or Location.

Neither Owner nor Management shall have any liability to a Resident who contracts the Covid-19 virus from another Resident, Occupant, Visitor, Social Guest, or Invitee who is the source of infection and over which the Owner or Management have no control. Resident shall have the burden of proof to establish medical causation and legal cause in fact of the origin of any instance of any illness, death, or injury alleged to be caused the Covid-19 virus.

9. Owner and Management Are Not Required to Provide Notices of Covid-19 Virus in the Apartment Community.

Resident acknowledges and agrees that:

Copyright © 5/2020 by Atlanta Apartment Association, Inc. - Form #2005
All Rights Reserved

Owner and Management are not required by law to provide written or verbal notices to the Resident of illness or death related to Covid-19 virus in or around the apartment community other than a notice required to be posted under the Guidelines which specify or may specify posting of a notice at certain facilities and amenities in the apartment community;

Owner's or Management's decision to provide an additional or voluntary advisory or notice of Covid-19 virus does not create a legal or contractual duty on the part of the Owner and Management to investigate or provide information to Resident regarding other instances of the Covid-19 virus that occur on the property nor to continue giving such notices in the future;

The failure to give a non-required notice of a Covid-19 virus illness that comes to Owner's or Management's attention does not breach a legal, tort, or contractual duty to provide such notices;

Resident has an affirmative obligation to perform his or her own due diligence when coming in contact with other Residents, Occupants, Social Guests, Visitors and Invitees in or around the apartment community;

Owner's or Management's failure to give notice of knowledge of or reports of other instances of Covid-19 virus does not create liability or breach a duty to Resident;

Resident's failure to follow proper medical hygiene and accepted protocols is a breach of Resident's contractual duty to exercise due care for his or her own safety and creates a defense or comparative negligence to any tort claim filed by Resident against Owner or Management.

Resident acknowledges that:

Owner and Management do not have actual or constructive knowledge of every instance of Covid-19 virus on or around the apartment community as many such instances go unreported to either the Owner or Management; and

Instances of Covid-19 virus may not be known to the Owner or Management and may be unknowable due to medical privacy considerations and asymptomatic individuals.

Resident agrees that he or she shall not form any assumption or reliance on the giving or failure of giving any notices as to whether Covid-19 virus has occurred in the apartment community. Regardless of what steps the Owner or Management take to provide notices of Covid-19 virus, such illness does and will occur in the apartment community. Resident agrees that he or she will never assume they are safe from contracting the Covid-19 virus and will exercise due care for their safety at all times.

10. Resident Agrees to Inform Family Members, Occupants, Social Guests, Visitors, and Invitees Regarding Exercising Due Care For Their Safety From Contracting the COVID-19 Virus.

Resident has a duty and agrees to advise and notify his family, occupants, social guests, visitors, or invitees of all provisions in this addendum and warn them to exercise due care for their safety at all times from contracting the Covid-19 virus. Resident agrees to indemnify and hold harmless Owner and Management from any and all claims, losses, personal injuries, property loss, or damages to Resident's family, occupants, social guests, visitors, or invitees due to Resident's failure to advise or notify said family, occupants, social guests, visitors, or invitees of the contents of this addendum.

11. Any Portion of Addendum Found to Be Void or Unenforceable to Be Severed and Remainder Enforced.

If any phrase, sentence, portion, provision, or paragraph of this addendum shall be found or determined to be void or unenforceable under Georgia law, then such void or unenforceable phrase, sentence, portion, provision, or paragraph shall be severed, and the balance or remainder of this addendum shall be upheld as valid and enforceable so as to carry out the expressed intent of the parties to this contract. The provisions of this addendum are contractual in nature and not mere recitals. If any phrase, sentence, portion, provision, or paragraph of this addendum is held to be void or unenforceable, the addendum in its entirety shall still be admissible in evidence in any civil lawsuit or trial with appropriate instructions as to effectiveness of the void or unenforceable portion.

12. Merger of All Prior Statements.

All prior statements, representations or agreements pertaining to security and reopening and use of facilities due to COVID-19 shall be void and unenforceable and are merged herein unless such representation is in writing and signed by all parties to this addendum and the Residential Lease Contract.

13. Covid-19 Virus Warning for Reopening Apartment Community and Use of Facilities and Amenities Addendum Is Incorporated by Reference into the Apartment Rental Contract.

This addendum shall be incorporated into the Residential Rental Contact between the Resident and Owner and Management and is effective and enforceable regardless of whether this addendum has been separately signed by the parties to said lease agreement. The terms and provisions contained in this addendum shall remain in effect throughout Resident's occupancy in the apartment community, and this addendum shall not be revoked in the event Resident extends the original lease, signs a renewal contract, or signs an entirely new rental contract for continued occupancy or residence in the apartment community.

SIGNATURE OF PARTIES

Management:

Name of the Owner or Management Company

By: *Signature of Owner or Management Representative*

Title of Owner or Management Representative Signing

Residents:

Resident Signature

Resident Signature

Resident Signature

Resident Signature

Resident Signature

Resident Signature

Copyright © 5/2020 by Atlanta Apartment Association, Inc. - Form #2005
All Rights Reserved